

HOUSE No. 3981

The Commonwealth of Massachusetts

PRESENTED BY:

Kip A. Diggs

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to establishing a pilot program to support high impact fisheries.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kip A. Diggs</i>	<i>2nd Barnstable</i>	<i>1/16/2025</i>

HOUSE No. 3981

By Representative Diggs of Barnstable, a petition (accompanied by bill, House, No. 3981) of Kip A. Diggs for legislation to establish a pilot program to support high impact fisheries. Agriculture.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to establishing a pilot program to support high impact fisheries.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 21A of the General Laws is hereby amended by adding the
2 following section:-

3 Section 32. (a) There shall be established within the office a pilot program to assess and
4 mitigate the economic impact of regulatory actions on high-impact fisheries including, but not
5 limited to, lobster and groundfish.

6 (b) As part of the pilot program, the office, in collaboration with the division of marine
7 fisheries, shall: (i) identify fisheries disproportionately affected by regulatory changes within the
8 past 5 years; (ii) conduct economic impact analysis to quantify losses and recommend mitigation
9 strategies; (iii) partner with private environmental organizations, federal agencies and academic
10 institutions to co-fund and conduct research; and (iv) develop a compensation framework for
11 qualifying fishers impacted by regulations.

(c) Any proposed regulation affecting the Massachusetts fishing industry shall include a comprehensive economic impact statement prepared by the division of marine fisheries, including a: (i) detailed analysis of projected economic losses for affected fisheries; and (ii) mitigation plan outlining steps to minimize adverse impacts on fisheries.

(d) The division of marine fisheries shall publish all economic impact statements on its website and provide a 60-day public comment period before finalizing regulations.

(e) The office shall prepare an annual report that shall include: (i) findings from the pilot program, including identified impacts and implemented mitigation strategies; (ii) any recommendations for future regulatory adjustments; and (iii) partnerships established and funding leveraged from non-state sources. The report shall be submitted, no later than December 31, to the chairs of the joint committee on environment and natural resources and the clerks of the house of representatives and senate.

SECTION 2. Chapter 29 of the General Laws is hereby amended by inserting, after Section 2JJJJJ, the following section:-

Section 2KKKKKK. (a) There shall be established and set up on the books of the commonwealth a separate fund, to be known as the High-Impact Fisheries Mitigation Fund. It shall consist of amounts credited to the fund in accordance with this section. The secretary of the executive office of energy and environmental affairs, shall be the custodian of the fund.

(b) The fund shall consist of: (i) revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund; (ii) interest earned on money in the fund; and (iii) federal grants and other gifts, grants and donations. Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the

fund at the end of a fiscal year shall not revert to the General Fund; provided, however, if the fund is repealed then the remaining credited amounts in the fund shall revert to the General Fund.

(c) Money in the fund shall be expended to carry out the goals of the pilot program established in section 32 of chapter 21A to assess and mitigate the economic impact of regulatory actions on high-impact fisheries including, but not limited to, lobster and groundfish.

(d) The executive office of energy and environmental affairs shall annually, not later than December 31 of each year, report on the activity of the fund to the: (i) chairs of the joint committee on environment and natural resources; (ii) house and senate committees on ways and means; and (iii) the clerks of the house of representatives and senate.

SECTION 3. Section 32 of chapter 21A of the General Laws, inserted by section 1, and section 2KKKKKK of chapter 29 of the General Laws, inserted by section 2, are hereby repealed.

SECTION 4. Section 3 shall take effect 5 years after the effective date of this act.

SECTION 5. Except as otherwise specified, this act shall take effect on January 1, 2025.